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DEPARTMENT OF THE NAVY
NAVAL FACILITIES
ENGINEERING COMMAND
GUIDE SPECIFICATION

NFGS-00401E
30 September 1995

Superseding NFGS-00401D (06/95)

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NFGS-00401E

REPRESENTATIONS AND CERTIFICATIONS FOR CONTRACTING BY SEALED BIDS

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SECTION 00401

REPRESENTATIONS AND CERTIFICATIONS FOR CONTRACTING BY SEALED BIDS
09/95

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NOTE: This section contains the \@Federal Acquisition Regulation (FAR) and DOD FAR Supplement (DFARS) paragraphs containing representations and certifications to be returned with bid forms@\. Updates are through \&FAC-90-29 and DAC-91-8&\.
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NOTE: This revision "E" to NFGS-00401 amends the issue dated 30 June 1995 by revising articles as shown by change tokens.
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NOTE: The forms to accompany the SPECSINTACT text are in the PERFORM PRO program.
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1.1 SUMMARY

The following clauses are from the Federal Acquisition Regulations (FAR) and Department of Defense Federal Acquisition Regulation Supplement (DFARS). Complete the paragraphs below, and return with the bid forms.

1.2 FAR 52.203-2, CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

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NOTE: As prescribed in 3.103 - 1, insert the following provision. (As applicable).
****

(a) The offeror certifies that --

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to (i) those prices, (ii) the intention to submit an offer, or (iii) the methods or factors used to calculate the prices offered;

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other

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offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory --

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to subparagraphs (a)(1) through (a)(3) above; or

(2) (i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to subparagraphs (a)(1) through (a)(3) above

_____

_____

_____

(insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization); (ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) above have not participated, and will not participate, in any action contrary to subparagraphs (a)(1) through (a)(3) above; and (iii) As an agent, has not personally participated, and will not participate, in any action contrary to subparagraphs (a)(1) through (a)(3) above.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

1.3 FAR 52.203-4, CONTINGENT FEE REPRESENTATION AND AGREEMENT (APR 1984)

(a) Representation. The offeror represents that, except for full-time bonafide employees working solely for the offeror, the offeror -- (Note: The offeror must check the appropriate boxes. For interpretation of the representation, including the term "bonafide employee," see Subpart 3.4 of the Federal Acquisition Regulation.)

(1) __has, __has not employed or retained any person or company to solicit or obtain this contract; and

(2) __has, __has not paid or agreed to pay to any person or company employed or retained to solicit or obtain this contract any commission, percentage, brokerage, or other fee contingent upon or resulting from the award of this contract.

(b) Agreement. The offeror agrees to provide information relating to the

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above Representation as requested by the Contracting Officer and, when subparagraph (a)(1) or (a)(2) is answered affirmatively, to promptly submit to the Contracting Officer --

(1) A completed Standard Form 119, Statement of Contingent or Other Fees, (SF 119); or

(2) A signed statement indicating that the SF 119 was previously submitted to the same contracting office, including the date and applicable solicitation or contract number, and representing that the prior SF 119 applies to this offer or quotation.

1.4 FAR 52.203-8, REQUIREMENT FOR CERTIFICATE OF PROCUREMENT INTEGRITY (NOV 1990)

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NOTE: Always use if greater than $100K.

****

(a) Definitions. The definitions at FAR 3.104-4 are hereby incorporated in this provision.

(b) Certifications. As required in paragraph (c) of this provision, the officer or employee responsible for this offer shall execute the following certification:

CERTIFICATE OF PROCUREMENT INTEGRITY

(1) I, (Name of certifier), am the officer or employee responsible for the preparation of this offer or bid and hereby certify that, to the best of my knowledge and belief, with the exception of any information described in this certificate, I have no information concerning a violation or possible violation of subsection 27(a), (b), (d), or (f) of the Office of Federal Procurement Policy Act, as amended* (41 U.S.C.423), (hereinafter referred to as "the Act"), as implemented in the FAR, occurring during the conduct of this procurement (solicitation number).

(2) As required by subsection 27(e)(1)(B) of the Act, I further certify that, to the best of my knowledge and belief, each officer, employee, agent, representative, and consultant of (Name of Offeror) who has participated personally and substantially in the preparation or submission of this offer has certified that he or she is familiar with, and will comply with, the requirements of subsection 27(a) of the Act, as implemented in the FAR, and will report immediately to me any information concerning a violation or possible violation of subsections 27(a), (b), (d), or (f) of the Act, as implemented in the FAR, pertaining to this procurement.

(3) Violations of possible violations: (Continue on plain bond paper if necessary and label Certificate of Procurement Integrity (Continuation Sheet), ENTER NONE IF NONE EXISTS)

_____

_____

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(4) I agree that, if awarded a contract under this solicitation, the certifications required by subsection 27(e)(1)(B) of the Act shall be maintained in accordance with paragraph (f) of this provision.

(Signature of the officer or employee responsible for the offer and date)

(Typed Name of the officer or employee responsible for the offer)

*Subsections 27(a), (b), and (d) are effective on December 1, 1990. Subsection 27(f) is effective June 1, 1991.

THIS CERTIFICATION CONCERNS A MATTER WITHIN THE JURISDICTION OF AN AGENCY OF THE UNITED STATES AND THE MAKING OF A FALSE, FICTITIOUS, OR FRAUDULENT CERTIFICATION MAY RENDER THE MAKER SUBJECT TO PROSECUTION UNDER TITLE 18, UNITED STATES CODE, SECTION 1001.

(c)(1) For procurements using sealed bidding procedures, the signed certifications shall be submitted by each bidder with the bid submission except for procurements using two-step sealed bidding procedure (see Subpart 14.5). For those procurements, the certifications shall be submitted with submission of the step two sealed bids. A certificate is not required for indefinite delivery contracts (see Subpart 16.5) unless the total estimated value of all orders eventually to be placed under the contract is expected to exceed $100,000.

(2) For contracts and contract modifications which include options, a certificate is required when the aggregate value of the contract or contract modification and all options (see 3.104-4(c)) exceeds $100,000.

(3) Failure of a bidder to submit the signed certificate with its bid shall render the bid nonresponsive.

(d) Pursuant to FAR 3.104-9(d), the Offeror may be requested to execute additional certifications at the request of the Government. Failure of an Offeror to submit the additional certifications shall cause its offer to be rejected.

(e) A certification containing a disclosure of a violation or possible violation will not necessarily result in the withholding of award under this solicitation. However, the Government, after evaluation of the disclosure, may cancel this procurement or take any other appropriate actions in the interests of the Government, such as disqualification of the Offeror.

(f) In making the certification in paragraph (2) of the certificate, the officer or employee of the competing contractor responsible for the offer may rely upon a one-time certification from each individual required to

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periodic training. These certifications shall be obtained at the earliest possible date after an individual required to certify begins employment or association with the contractor. If a contractor decides to rely on a certification executed prior to the suspension of section 27 (i.e., prior to December 1, 1989), the Contractor shall ensure that an individual who has so certified is notified that section 27 has been reinstated. These certifications shall be maintained by the Contractor for 6 years from the date a certifying employee's employment with the company ends or, for an agent, representative, or consultant, 6 years from the date such individual ceases to act on behalf of the Contractor.

(g) Certifications under paragraphs (b) and (d) of this provision are material representations of fact upon which reliance will be placed in awarding a contract.

1.5 FAR 52.203-11, CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (APR 1991)

****
NOTE: Always use over $100K.
****

(a) The definitions and prohibitions contained in the clause, at "FAR 52.203-12, Limitation on Payments to Influence Certain Federal Transactions," included in this solicitation, are hereby incorporated by reference in paragraph (b) of this certification.

(b) The offeror, by signing its offer, hereby certifies to the best of his or her knowledge and belief that on or after December 23, 1989,

(1) No Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on his or her behalf in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment or modification of any Federal contract, grant, loan, or cooperative agreement;

(2) If any funds other than Federal appropriated funds (including profit or fee received under a covered Federal transaction) have been paid, or will be paid, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on his or her behalf in connection with this solicitation, the offeror shall complete and submit, with its offer, OMB standard form LLL, Disclosure of Lobbying Activities, to the Contracting Officer; and

(3) He or she will include the language of this certification in all subcontract awards at any tier and require that all recipients of subcontract awards in excess of $100,000 shall certify and disclose accordingly.

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(c) Submission of this certification and disclosure is a prerequisite for making or entering into this contract imposed by section 1352, title 31, United States Code. Any person who makes an expenditure prohibited under this provision or who fails to file or amend the disclosure form to be filed or amended by this provision, shall be subject to a civil penalty of not less than $10,000, and not more than $100,000, for each such failure.

1.6 FAR 52.204-3, TAXPAYER IDENTIFICATION (SEP 1992)

(a) Definitions.

"Common parent," as used in this solicitation provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

"Corporate status," as used in this solicitation provision, means a designation as to whether the offeror is a corporate entity, an unincorporated entity (e.g., sole proprietorship or partnership), or a corporation providing medical and health care services.

"Taxpayer Identification Number (TIN)," as used in this solicitation provision, means the number required by the IRS to be used by the offeror in reporting income tax and other returns.

(b) All offerors are required to submit the information required in paragraphs (c) through (e) of this solicitation provision in order to comply with reporting requirements of 26 U.S.C.6041, 6041A, and 6050M and implementing regulations issued by the Internal Revenue Service (IRS). If the resulting contract is subject to reporting requirements described in FAR 4.903, the failure or refusal by the offeror to furnish the information may result in a 20 percent reduction of payments otherwise due under the contract.

(c) Taxpayer Identification Number (TIN).
( ) TIN: _____.
( ) TIN has been applied for.
( ) TIN is not required because:
( ) Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the U.S. and does not have an office or place of business or a fiscal paying agent in the U.S.;
( ) Offeror is an agency or instrumentality of a foreign government;
( ) Offeror is an agency or instrumentality of a Federal, state or local government;
( ) Other. State basis. _____.

(d) Corporate Status.
( ) Corporation providing medical and health care services, or engaged in the billing and collecting of payments for such services; ( ) Other corporate entity;
( ) Not a corporate entity; ( ) Sole proprietorship ( ) Partnership ( ) Hospital or extended care facility described in 26 CFR 501(c)(3) that is exempt from taxation under 26 CFR 501(a).

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(e) Common Parent.

( ) Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this clause.

( ) Name and TIN of common parent:

Name_____

TIN_____

1.7 FAR 52.209-5, CERTIFICATION REGARDING DEBARMENT, SUSPENSION, PROPOSED DEBARMENT, AND OTHER RESPONSIBILITY MATTERS (MAY 1989)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that --(i) The Offeror and/or any of its Principals --(A) Are ( ) are not ( ) presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency; (B) Have ( ) have not ( ), within a 3-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, state, or local) contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property; and (C) Are ( ) are not ( ) presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in subdivision (a)(1)(i)(B) of this provision. (ii) The Offeror has ( ) has not ( ), within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principals," for the purposes of this certification, means officers; directors; owners; partners; and, persons having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a subsidiary, division, or business segment, and similar positions). This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under section render the maker subject to prosecution under section 1001, title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

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(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

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1.8 NAPS 5252.210-9000, NOTICE TO OFFERORS, USE OF OZONE DEPLETING SUBSTANCES (AUG 93)

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NOTE: Use only if applicable.
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(a) In accordance with Section 326 of Pub. l. 102-484, the Department of Defence is prohibited from awarding any contract which includes a DOD-directed specification or standard (ODS) that requires the use of a Class I ozone-depleting substance (ODS) or that can be met only through the use of such a substance unless such use has been approved by a senior acquisition official (SAO). The SAO approval is based on a technical certification that no suitable substitute for the ODS is currently available.

(b) To comply with this statute, the Navy has screened the specifications and standards associated with this solicitation. To the extent that ODS requirements were revealed by this review they are identified below.

Class I ODS Identified Specification/Standard

(c) If offerors possess knowledge about any other Class I ODS required directly or indirectly by the specification or standards, the Navy would appreciate such information in your response to this solicitation. Offerors are under no obligation to comply with this request and no compensation can be provided for doing so.

1.9 FAR 52.214-2, TYPE OF BUSINESS ORGANIZATION--SEALED BIDDING (JUL 1987)

The bidder, by checking the applicable box, represents that--

(a) It operates as ___ a corporation incorporated under the laws of the State of _____, ___ an individual, ___ a partnership, ___ a nonprofit organization, or ___ a joint venture; or

(b) If the bidder is a foreign entity, it operates as ___ an individual, ___ a partnership, ___ a nonprofit organization, ___ a joint venture, or

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___ a corporation, registered for business in _____.
country

1.10 FAR 52.219-1, SMALL BUSINESS CONCERN REPRESENTATION (FEB 1995)

(a) Representation. The offeror represents and certifies as part of its offer that it is ___ a small business concern, ___is not a small business concern.

(b) Definition. "Small business concern," as used in this provision, means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the size standards in this solicitation.

(c) Notice:

(1) If this solicitation is for supplies and has ben set-aside, in whole or in part, for small business concerns, then the clause in this solicitation providing notice of the set-aside contains restrictions on the source of the end items to be furnished.

(2) Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a small business concern in order to obtain a contract to be awarded under the preference programs established pursuant to sections 8(a), 8(d), 9, or 15 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition references section 8(d) for a definition of program eligibility, shall--(i) Be punished by imposition of a fine, imprisonment, or both; (ii) Be subject to administrative remedies, including suspension and debarment; and (iii) Be ineligible for participation in programs conducted under the authority of the Act.

1.11 FAR 52.219-3, WOMEN - OWNED SMALL BUSINESS REPRESENTATION (APR 1984)

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NOTE: Insert the following provision in solicitations (other than those for small purchases), when the contract is to be performed inside the United States, its territories or possessions, Puerto Rico, the Trust Territory of the Pacific Islands, or the District of Columbia:

****

(a) Representation. The offeror represents that it __is, __is not a women-owned small business concern.

(b) Definitions.

"Small business concern," as used in this provision, means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria and size standards in 13 CFR 121.

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"Women-owned," as used in this provision, means a small business that is at least 51 percent owned by a woman or women who are U.S. citizens and who also control and operate the business.

1.12 FAR 52.219-19, SMALL BUSINESS CONCERN REPRESENTATION FOR THE SMALL BUSINESS COMPETITIVENESS DEMONSTRATION PROGRAM (JUL 1991)

(a) Definition. Emerging small business as used in this solicitation, means a small business concern whose size is no greater than 50 percent of the numerical size standard applicable to the standard industrial classification code assigned to a contracting opportunity.

(b) Complete only if the Offeror has certified itself under the provision as 52.219-1 as a small business concern under the size standards of this solicitation.

The Offeror represents and certifies as part of its offer that it _____ is _____ is not an emerging small business.

(c) Offeror's number of employees for the past 12 months (check this column if size standard stated in solicitation is expressed in terms of number of employees) or Offeror's average annual gross revenue for the last 3 fiscal years (check this column if size standard stated in solicitation is expressed terms of annual receipts). (Check one of the following.)

No. of Employees	Avg. Annual Gross Revenues
___50 or fewer	___$1 million or less
___51-100	___$1,000,001 - $2 million
___101-250	___$2,000,001 - $3.5 million
___251-500	___$3,500,001 - $5 million
___501-750	___$5,000,001 - $10 million
___751-1,000	___$10,000,001 - $17 million
___Over 1,000	___Over $17 million

1.13 FAR 52.219-21, SMALL BUSINESS SIZE REPRESENTATION FOR TARGETED INDUSTRY CATEGORIES UNDER THE SMALL BUSINESS COMPETITIVENESS DEMONSTRATION PROGRAM (JUL 1991)

(Complete only if the Offeror has certified itself under the provision at 52.219-1 as a small business concern under the size standards of this solicitation.)

Offeror represents and certifies as follows:

Offeror's number of employees for the past 12 months (check this column if size standard stated in solicitation is expressed in terms of number of employees) or Offeror's average annual gross revenue for the last 3 fiscal years (check this column if size standard stated in solicitation is expressed terms of annual receipts). (Check one of the following.)

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No. of Employees	Avg. Annual Gross Revenues
___50 or fewer	___$1 million or less
___51-100	___$1,000,001 - $2 million
___101-250	___$2,000,001 - $3.5 million
___251-500	___$3,500,001 - $5 million
___501-750	___$5,000,001 - $10 million
___751-1,000	___$10,000,001 - $17 million
___Over 1,000	___Over $17 million

1.14 FAR 52.219-22, SIC CODE AND SMALL BUSINESS SIZE STANDARD (JAN 1991)

(a) The standard industrial classification (SIC) code for this acquisition is [_____].

(b)

(1) The small business size standard is [_____].

(2) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture, is 500 employees.

1.15 \&DFARS 252.219-7000, SMALL DISADVANTAGED BUSINESS CONCERN REPRESENTATION (DOD CONTRACTS) (APR 1994)&\

(a) Definition. "Small disadvantaged business concern," as used in this provision, means a small business concern owned and controlled by individuals who are both socially and economically disadvantaged, as defined by the Small Business Administration at 13 CFR Part 124, the majority of earnings of which directly accrue to such individuals. This term \&also&\ means a small business concern owned and controlled by an economically disadvantaged Indian Tribe or Native Hawaiian organization which meets the requirements of \&13 CFR&\ 124.112 or 13 CFR 124.113, respectively. In general, 13 CFR \&Part 124&\ describes a small disadvantaged business concern as a small business concern

(1) \&Which&\ is at least 51 percent unconditionally owned by one or more socially and economically disadvantaged individuals; or

(2) \&In&\ the case of any publicly owned business, at least 51 percent of the voting stock is unconditionally owned by one or more socially and economically disadvantaged individuals; and

(3) \&Whose&\ management and daily business operations are controlled by one or more such individuals.

(b) Representations. Check the category in which your ownership falls--

_____Subcontinent Asian (Asian-Indian) American (U.S. Citizen with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, or Nepal)

_____Asian-Pacific American (US Citizen with origins from Japan, China, the Philippines, Vietnam, Korea, Samoa, Guam, U.S. Trust Territory of the

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Pacific Islands (Republic of Palau), the Northern Mariana Islands, Laos, Kampuchea (Cambodia), Taiwan, Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Republic of the Marshall Islands, or the Federated States of Micronesia)

_____Black American (U.S. Citizen)

_____Hispanic American (U.S. citizen with origins from South America, Central America, Mexico, Cuba, the Dominican Republic, Puerto Rico, Spain or Portugal)

_____Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians, including Indian tribes or Native Hawaiian \&organizations&\)

_____\&Individual/concern,&\ other than one of the preceding, currently certified for participation in the Minority Small Business and Capital Ownership Development Program under Section 8(a) of the Small Business Act

_____Other

(c) \&Certifications&\.

Complete the following:

(1) The Offeror is _____, is not _____ a small disadvantaged business concern.

(2) The Small Business Administration (SBA) has _____, has not _____ made a determination concerning the offeror's status as a small disadvantaged business concern. If the SBA has made a determination, the date of the determination was _____ and the offeror

___ Was found by SBA to be socially and economically disadvantaged and no circumstances have changed to vary that determination.

___ Was found by the SBA not to be socially and economically disadvantaged but circumstances which caused the determination have changed.

\&&\

(d) Penalties and Remedies. Anyone who misrepresents the status of a concern as a small disadvantaged business for the purpose of securing a contract or subcontract shall

(1) Be punished by imposition of a fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and disbarment; and

(3) Be ineligible for participation in programs conducted under authority of the Small Business Act.

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1.16 FAR 52.220-1, PREFERENCE FOR LABOR SURPLUS AREA CONCERNS (APR 1984)

****

NOTE: Insert this clause in solicitations and contracts that (a) exceed the appropriate small purchase limitation in Part 13 and (b) are not set aside for labor surplus area concerns:

****

(a) This acquisition is not a set aside for labor surplus area (LSA) concerns. However, the offeror's status as such a concern may affect (1) entitlement to award in case of tie offers or (2) offer evaluation in accordance with the Buy American Act clause of this solicitation. In order to determine whether the offeror is entitled to a preference under (1) or (2) above, the offeror must identify, below, the LSA in which the costs to be incurred on account of manufacturing or production (by the offeror or the first-tier subcontractors) amount to more than 50 percent of the contract price.

_____

_____

(b) Failure to identify the locations as specified above will preclude consideration of the offeror as an LSA concern. If the offeror is awarded a contract as an LSA concern and would not have otherwise qualified for award, the offeror shall perform the contract or cause the contract to be performed in accordance with the obligations of an LSA concern.

1.17 FAR 52.222-21, CERTIFICATION OF NONSEGREGATED FACILITIES (APR 1984)

****

NOTE: Insert the following provision in solicitations when a contract is contemplated that will include the clause at "FAR 52.222-26, Equal Opportunity," and the contract amount is expected to exceed $10,000.

****

(a) "Segregated facilities," as used in this provision, means any waiting rooms, work areas, rest rooms and wash rooms, restaurants and other eating areas, time clocks, locker rooms and other storage or dressing areas, parking lots, drinking fountains, recreation or entertainment areas, transportation, and housing facilities provided for employees, that are segregated by explicit directive or are in fact segregated on the basis of race, color, religion, or national origin because of habit, local custom, or otherwise.

(b) By the submission of this offer, the offeror certifies that it does not and will not maintain or provide for its employees any segregated facilities at any of its establishments, and that it does not and will not permit its employees to perform their services at any location under its control where segregated facilities are maintained. The offeror agrees that a breach of this certification is a violation of the Equal Opportunity clause in the contract.

(c) The offeror further agrees that (except where it has obtained

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identical certifications from proposed subcontractors for specific time periods) it will --

(1) Obtain identical certifications from proposed subcontractors before the award of subcontracts under which the subcontractor will be subject to the Equal Opportunity clause;

(2) Retain the certifications in the files; and

(3) Forward the following notice to the proposed subcontractors (except if the proposed subcontractors have submitted identical certifications for specific time periods):

NOTICE TO PROSPECTIVE SUBCONTRACTORS OF REQUIREMENT FOR CERTIFICATIONS OF NONSEGREGATED FACILITIES

A Certification of Nonsegregated Facilities must be submitted before the award of a subcontract under which the subcontractor will be subject to the Equal Opportunity clause. The certification may be submitted either for each subcontract or for all subcontracts during a period (i.e., quarterly, semiannually, or annually).

NOTE: The penalty for making false statements in offers is prescribed in 18 U.S.C.1001.

1.18 FAR 52.222-22, PREVIOUS CONTRACTS AND COMPLIANCE REPORTS (APR 1984)

****
NOTE: Insert the following provision in solicitations when a contract is contemplated that will include the clause at "FAR 52.222-26, Equal Opportunity."
****

The offeror represents that --

(a) It __ has, __has not participated in a previous contract or subcontract subject either to the Equal Opportunity clause of this solicitation, the clause originally contained in Section 310 of Executive Order No. 10925, or the clause contained in Section 201 of Executive Order No. 11114;

(b) It __has, __has not, filed all required compliance reports; and

(c) Representations indicating submission of required compliance reports, signed by proposed subcontractors, will be obtained before subcontract awards.

1.19 FAR 52.223-1, CLEAN AIR AND WATER CERTIFICATION (APR 1984)

****
NOTE: Always use this clause if greater than $100K.
****

****

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NOTE: Insert the following provision in solicitations containing the clause at "FAR 52.223-2, Clean Air and Water."

****

The Offeror certifies that --

(a) Any facility to be used in the performance of this proposed contract is__, is not__ listed on the Environmental Protection Agency List of Violating Facilities;

(b) The Offeror will immediately notify the Contracting Officer, before award, of the receipt of any communication from the Administrator, or a designee, of the Environmental Protection Agency, indicating that any facility that the Offeror proposes to use for the performance of the contract is under consideration to be listed on the EPA List of Violating Facilities; and

(c) The Offeror will include a certification substantially the same as this certification, including this paragraph (c), in every nonexempt subcontract.

1.20 FAR 52.223-4, RECOVERED MATERIAL CERTIFICATION (APR 1984)

The offeror certifies, by signing this offer, that recovered materials, as defined in section 23.402 of the Federal Acquisition Regulation, will be used as required by the applicable specifications.

1.21 \&FAR 52.223-5, CERTIFICATION REGARDING A DRUG-FREE WORKPLACE (JUL 1995)&\

(a) Definitions. As used in this provision,

"Controlled substance" means a controlled substance in schedules I through V of section 202 of the Controlled Substances Act (21 U.S.C.812) and as further defined in regulation at 21 CFR 1308.11 - 1308.15.

"Conviction" means a finding of guilt (including a plea of nolo contendere) or imposition of sentence, or both, by any judicial body charged with the responsibility to determine violations of the Federal or State criminal drug statutes.

"Criminal drug statute" means a Federal or non-Federal criminal statute involving the manufacture, distribution, dispensing, possession or use of any controlled substance.

"Drug-free workplace" means the site(s) for the performance of work done by the Contractor in connection with a specific contract at which employees of the Contractor are prohibited from engaging in the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance.

"Employee" means an employee of a Contractor directly engaged in the performance of work under a Government contract.

"Directly engaged" is defined to include all direct cost employees and any

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other Contractor employee who has other than a minimal impact or involvement in contract performance.

"Individual" means an offeror/contractor that has no more than one employee including the offeror/contractor.

(b) By submission of its offer, the offeror, \&(other than an individual) responding to solicitation that is expected to exceed the simplified acquisition threshold, certifies and agrees, that with respect to all employees of the offeror to be employed under a contract resulting from this solicitation,&\ it will -- no later than 30 calendar days after contract award (unless a longer period is agreed to in writing), for contracts of 30 calendar days or more performance duration; or as soon as possible for contracts of less than 30 calendar days performance duration, but in any case, by a date prior to when performance is expected to be completed--

(1) Publish a statement notifying such employees that the unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in the Contractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition;

(2) Establish an ongoing drug-free awareness program to inform such employees about --(i) The dangers of drug abuse in the workplace; (ii) The Contractor's policy of maintaining a drug-free workplace; (iii) Any available drug counseling, rehabilitation, and employee assistance programs; and (iv) The penalties that may be imposed upon employees for drug abuse violations occurring in the workplace;

(3) Provide all employees engaged in performance of the contract with a copy of the statement required by subparagraph (b)(1) of this provision;

(4) Notify such employees in writing in the statement required by subparagraph (b)(1) of this provision, that as a condition of continued employment on the contract resulting from this solicitation, the employee will --(i) Abide by the terms of the statement; and (ii) Notify the employer in writing of the employee's conviction under a criminal drug statute conviction for a violation occurring in the workplace no later than 5 calendar days after such conviction;

(5) Notify the Contracting Officer in writing within 10 calendar days after receiving notice under subdivision (b)(4)(ii) of this provision, from an employee or otherwise receiving actual notice of such conviction. The notice shall include the position title of the employee; and

(6) Within 30 calendar days after receiving notice under subdivision (b)(4)(ii) of this provision of a conviction, take one of the following actions with respect to any employee who is convicted of drug abuse violations occurring in the workplace: (i) Take appropriate personnel action against such employee, up to and

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including termination; or (ii) Require such employee to satisfactorily participate in a drug abuse assistance or rehabilitation program approved for such purposes by a Federal, State, or local health, law enforcement, or other appropriate agency.

(7) Make a good faith effort to maintain a drug-free workplace through implementation of subparagraphs (b)(1) through (b)(6) of this provision.

(c) By submission of its offer, the offeror, if an individual who is making an offer of any dollar value, certifies and agrees that the offeror will not engage in the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance in the performance of the contract resulting from this solicitation.

(d) Failure of the offeror to provide the certification required by paragraph (b) or (c) of this provision, renders the offeror unqualified and ineligible for award. (See FAR 9.104 - 1(g) and 19.602 - 1(a)(2)(i).)

(e) In addition to other remedies available to the Government, the certification in paragraphs (b) and (c) of this provision concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under Title 18, United States Code, Section 1001.

1.22 [FAR 52.225-6, BALANCE OF PAYMENTS PROGRAM CERTIFICATE (APR 1985)

****

NOTE: Use this clause for outside the United States.

****

(a) The offeror hereby certifies that each end product or service, except the end products or services listed below, is a domestic end product or service (as defined in the clause entitled "Balance of Payments Program") and that components of unknown origin have been considered to have been mined, produced, or manufactured outside the United States.

Excluded End Products or Services

Line Item No.	Country of Origin

(List as necessary)

(b) For evaluation purposes only, each offer of an end product other than a domestic end product shall be increased by 50 percent. Any domestic end product offer that exceeds such evaluated other end product shall be considered unreasonable in cost or inconsistent with the public interest.]

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1.23 DFARS 252.247-7022, REPRESENTATION OF EXTENT OF TRANSPORTATION OF SUPPLIES BY SEA (JAN 1990)

The clause at "DFARS 252.247-7023, Transportation of Supplies by Sea," will be included in any contract resulting from this solicitation. The Offeror is required to indicate whether transportation by sea is anticipated under the resultant contract by checking the appropriate blank as follows:

____The Offeror represents that it does anticipate that supplies, as defined in the clause at "DFARS 252.247-7023, Transportation of Supplies by Sea," will be transported by sea in the performance of any contract or subcontract resulting from this solicitation.

____The Offeror represents that it does not anticipate that supplies, as defined in the clause at "DFARS 252.247-7023, Transportation of Supplies by Sea," will be transported by sea in the performance of any contract or subcontract resulting from this solicitation. If the Offeror represents that it will not use ocean transportation, the clause at "DFARS 252.247-7024," will also be inserted in the resulting contract.

****

NOTE: Suggestions for improvement of this specification will be welcomed using the Navy "Change Request Forms" subdirectory located in SPECSINTACT in Jobs or Masters under "Forms/Documents" directory or DD Form 1426. Suggestions should be forwarded to:

Commanding Officer
Naval Construction Battalion Center
NAVFAC 15G/CESO 158
1000 23rd Avenue
Port Hueneme, CA 93043-4301

FAX: (805) 985-6465/982-5196

****

-- End of Section --

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GENERAL NOTES

Guidance for use of this Naval Facilities Guide Specification (NFGS):

1. The NFGS is in the three-part section format established by the Construction Specifications Institute and adopted by the Department of the Navy. It is designed to ease preparation of the project specification section with the SPECSINTACT Processing System.

2. All technical notes are inserted in the body of the NFGS, separated from text by lines of asterisks. All notations immediately precede the text to which they apply. DO NOT INCLUDE NOTES OR NOTATIONS IN THE PROJECT SPECIFICATION SECTION. (Notes can be deleted automatically when using SPECSINTACT.)

3. Do not refer to the NFGS in the project specification. Use it as a manuscript, editing and modifying to meet project requirements. Where "as shown," "as indicated," "as detailed," or similar words are used, include all requirements so designated on the project drawings.

4. Do not include in the project specification:

    a. Signature Sheet
    b. Table of Contents
    c. Notes
    d. Sketches, if any
    e. General Notes
    f. Other supplemental information, if any, attached to this guide specification.

5. Place project title in upper left corner of each page and limit to 66 character spaces on one line. (Automatically printed when using SPECSINTACT if the project title is entered as the title in the Job Set-Up Screen).

6. Place project specification number in upper right corner of each page. (Automatically printed when using SPECSINTACT if the project specification number is entered as the job name in the Job Set-Up Screen.)

7. Center project specification section number and page number at bottom of each page of the section created from this guide specification. (Automatically printed when using SPECSINTACT.)

8. Where numbers, symbols, words, phrases, clauses, sentences, or paragraphs in this guide specification are enclosed in brackets, [], a choice or modification must be made; delete inapplicable portion(s) and brackets. Where blank spaces enclosed in brackets occur, insert appropriate data. Delete inapplicable text and, if not using

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SPECSINTACT, renumber subsequent articles, paragraphs, sub-paragraphs, accordingly. (Renumbering is done automatically during the print process when using SPECSINTACT.)

9. The article "REFERENCES" never contains numbered paragraphs or subparagraphs. Each organization's publications are listed beneath the organization name. Revision letters or dates identifying the current edition appear in parentheses followed by the title.

10. Use the latest issue of the referenced publications, but only after reviewing to ensure that it will satisfy the minimum essential requirements of the project. If the latest issue does not satisfy project requirements:

    1. Use the issue shown; or
    2. Select and refer to a document which does; or
    3. Incorporate the pertinent requirements into the project specification.

    Inform NAVFACENGCOM 15G, if the latest issue of a referenced publication is not compatible with this guide specification.

    Delete those referenced publications not used for the project specification.

11. The "SUBMITTALS" article in Part 1 of the section includes a SPECSINTACT coding. This provides an automated project "Submittals Register" when utilizing the SPECSINTACT Processing System. The system prints two letters and two numbers on the hard copy for each submittal type (i.e. SD-14 for "Samples"). The letters and numbers (i.e., SD-14 for "Samples") are submittal descriptions defined in Section 01300, "Submittals."

12. Do not repeat information shown on the drawings in the specification. Use the specifications to establish quality of materials and workmanship, methods of installation, equipment functions, and required testing. Use the drawings to indicate dimensions, relationship of materials, quantities, and location and capacity of equipment. Use keywords common between the specifications and drawings.

13. CAUTION: Coordination of this section with other sections of the project specification and with the drawings is mandatory. If materials or equipment are to be furnished under this section and installed under other sections or are indicated on the drawings, state that fact clearly for each type of material and item of equipment. Review the project specifications and drawings to ensure that complete and operational systems and equipment will be provided.

14. Changes or revisions to this document, since the date of original NAVFAC approval, have been performed by the Guide Specifications Division (NAVFAC 15G). (Phone: (805) 982-6103, DSN 551-6103), FAX: (805) 985-6465/982-5196.

15. Suggestions for improvement of this specification will be welcomed using the Navy "Change Request Form" subdirectory located in

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SPECSINTACT in Jobs or Masters under "Forms/Documents" directory or DD Form 1426. Forward to:

Commanding Officer
Naval Construction Battalion Center
NAVFAC 15G/CESO 158
1000 23rd Avenue
Port Hueneme, CA 93043-4301

FAX: (805) 985-6465/982-5196

-- End of General Notes --

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STANDARDIZATION DOCUMENT IMPROVEMENT PROPOSAL

INSTRUCTIONS

1. The preparing activity must complete blocks 1, 2, 3, and 8. In block 1, both the document number and the revision letter should be given.
2. The submitter of this form must complete blocks 4, 5, 6, and 7.
3. the preparing activity must provide a reply within 30 days from receipt of the form.

NOTE: This form may not be used to request copies of documents, nor to request waivers, or clarification of requirements on current contracts. Comments submitted on this form do not constitute or imply authorization to waive any portion of the referenced document(s) or to amend contractual requirements.

I RECOMMEND A CHANGE	1. DOCUMENT NUMBER NFGS-00401E	2. DOCUMENT DATE (YYMMDD) 950930

3. DOCUMENT TITLE

REPRESENTATIONS AND CERTIFICATIONS FOR CONTRACTING BY SEALED BIDS

4. NATURE OF CHANGE (*Identify paragraph number and include proposed rewrite, if possible. Attach extra sheets as needed.*)

5. REASON FOR RECOMMENDATION

6. SUBMITTER

a. NAME (Last, First, Middle Initial)	b. ORGANIZATION	
c. ADDRESS (*Include Zip Code*)	d. TELEPHONE (*Include Area Code*) (1) Commercial (2) AUTOVON (*if applicable*)	7. DATE SUBMITTED (*YYMMDD*)

8. PREPARING ACTIVITY

a. NAME MS. JOAN SAMSON, P.E.	b. TELEPHONE (*Include Area Code*) (1) Commercial (805) 982-5543 (2) AUTOVON 551-5543
c. ADDRESS (*Include Zip Code*) NAVAL CONSTRUCTION BATTALION CENTER NAVFAC 15G/CESO 158, 1000 23rd AVENUE PORT HUENEME, CA 93043-4301	IF YOU DO NOT RECEIVE A REPLY WITHIN 45 DAYS, CONTACT: Defense Quality and Standardization Office 5203 Leesburg Pike, Suite 1403, Falls Church, VA 22041 Telephone (703) 756-2340 AUTOVON 289-2340

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